



Contemporary Intellectual Property: Law and Policy (6th edn)

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p. 725 18. Privacy and control of information

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Abstract

This chapter considers the extent to which individuals can and should be able to prevent others referring to them and their activities and, conversely, the extent to which individuals and companies should be able to commercialise and control a reputation that they have built up. The discussions cover the evolving right to personal privacy (through the tort of misuse of private information) and its base in human rights, particularly in respect of photographs; obtaining and dealing with trade marks in respect of well-known personalities; the relationship between passing off and endorsement and merchandising; and the extent to which individuals and businesses can and do control the use of their image through endorsement and sponsorship. The chapter also considers data protection in this context, as well as the balancing of privacy and freedom of expression.

Keywords: ECHR, Human Rights Act, trade marks, passing off, merchandising, endorsement, sponsorship, public image, image rights, freedom of expression

Introduction

Scope and overview of chapter

18.1 This chapter considers the extent to which individuals should be able to prevent others referring to them and their activities and, conversely, to what extent individuals and companies should be able to commercialise and control a reputation which they have built. These topics are both legally important and of contemporary societal interest. They build upon the discussion of trade marks in Chapter 15, of passing off in Chapter 16, and of breach of confidence in Chapter 17.

18.2 These issues have been explored using practical labels such as privacy, merchandising, and endorsement, and more legal terms such as personality and publicity; yet the meaning of and distinction between these can be unclear.¹ Accordingly, this chapter focuses on the two essential elements of information and reputation. It will explore the different means by which the law enables businesses and individuals to commercialise and protect their reputation, and details of their personal activities. The chapter also explores justifications for this from the intellectual property (IP) perspective. It also briefly considers the law of data protection as a means of protecting individual privacy.

18.3 In the UK there is an action for misuse of private information, which arose from the combination of breach of confidence and the Human Rights Act 1998 (HRA 1998). Trade marks can be obtained for a name, a signature, or the image (as in picture) of a person, if this has a distinctive character; but not if they are merely descriptive and 'image carriers'. Trade mark registrations can then be used to control merchandising. Passing off can prevent misrepresentation through merchandising practices, if the personality (be it real or fictional) has established goodwill; reputation is not enough. An important element in acceptance of this by courts has been the awareness of the public that official merchandising does occur. Passing off can also address false endorsement. If there is an agreement which relates to confidential information then the parties to that agreement can sue others if there is a breach of confidence. Otherwise, however, there is no right in respect of image (in the sense of reputation, rather than photograph), notwithstanding the plethora of image rights agreements involving, say, sporting celebrities. Gaps exist, therefore, in the protection conferred in respect of information and reputation.

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18.4 Learning objectives

By the end of this chapter you should be able to describe and explain:

- the evolving right to personal privacy and its base in human rights, particularly in respect of photographs;
- the obtaining and dealing with trade marks in respect of well-known personalities;
- the relationship between passing off and merchandising;
- the extent to which individuals and businesses can and do control the use of their image through endorsement and sponsorship;
- how rights to control image and information can be transferred.

Exercise

Identify a situation which could involve at least two of the following issues: privacy, character merchandising, unauthorised endorsement, and use of image. Form your own views on how the law should apply to it. Review it after you have completed your work on this chapter.

18.5 So, the chapter looks like this:

- How does it work in practice? Some examples (18.6)
- Personal privacy (18.7–18.30)
- Merchandising (18.31–18.53)
- Endorsement and sponsorship (18.54–18.60)
- Control of (public) image (18.61–18.63)

How does it work in practice? Some examples

■ *Campbell v MGN Ltd* [2004] 2 AC 457 (HL)

18.6 This involved the newspaper publication of a photograph of supermodel Naomi Campbell in a public place, leaving a confidential Narcotics Anonymous meeting. The House of Lords considered breach of confidence in conjunction with the obligations imposed on the court by the HRA 1998, and found that the action was in this context better named ‘misuse of private information’. The House of Lords held that the photographs were private information. The right for this to be respected was then balanced against rights to freedom of expression, considering the nature of expression involved and of the information, and the extent to which C was a public figure. The House of Lords split 3:2² in favour of C. Significant weight was attached to her seeking medical treatment, and it was considered that restriction on freedom of expression in such circumstances was necessary and proportionate.

■ *Mirage Studios v Counter-Feat Clothing Co Ltd* [1991] FSR 145

The defendants applied the images of the Teenage Mutant Ninja Turtles, cartoon characters that are humanoid creatures with some of the features of turtles (notably half-shells), to their clothing products—without having a licence to do so from the creators of the characters. Browne-Wilkinson V-C held that this was passing off. A substantial section of the public knew that the reproduction of

well-known characters on goods was generally licensed by the originators of the characters; the public would therefore assume that the goods so marketed had the approval of the originators for quality, and that the images used came from the originators rather than being copies. The public would therefore be misled by such unlicensed reproductions.

■ ***Irvine v Talksport Ltd* [2002] EWHC 367 (Ch); [2003] EWCA Civ 423**

A promotional brochure for T Ltd contained a manipulated image of the racing driver Eddie Irvine apparently listening to the radio station. I had no connection with the radio station. It was held that this was a representation of an endorsement of the radio station by I, and constituted passing off.

■ ***Fenty v Arcadia* [2013] EWHC 2310 (Ch); [2015] EWCA Civ 3**

A clothing store, Topshop, produced t-shirts bearing the image of the singer Rihanna. While the singer had entered into various sponsorship and merchandising agreements, she had no agreement with T for the production of the t-shirts. There was a misrepresentation that the t-shirt was endorsed by R. The court held that the use of the image constituted passing off. T's appeal was dismissed.

■ ***OBG Ltd v Allan, Douglas v Hello! and Others* [2007] UKHL 21**

The actors Michael Douglas and Catherine Zeta-Jones were married in New York and entered into an exclusive agreement with *OK!* magazine to publish the photographs of their wedding. *OK!* paid D and Z-J £1 million, and in return it was made clear to the many guests that cameras were not to be brought to the wedding; an obligation of confidence was imposed in respect of all photographs of the wedding. However, *Hello!* magazine obtained photographs from a freelance photographer who infiltrated the wedding. The House of Lords found that *OK!* (quite apart from D and Z-J) had an action against *Hello!* for breach of confidence.

■ *Bloomberg LP v ZXC* [2022] UKSC 5

B, a news organisation, published an article about an individual, ZXC, and his work for a company in a foreign country. ZXC was under criminal investigation by a law enforcement body in the UK relating to actions of the company including allegations of fraud and corruption. The investigators had sent a letter (marked 'confidential') to the country seeking further evidence and which identified certain criminal offences that they considered ZXC to have committed. This letter was acquired by a journalist working for B and the information within it formed the basis of the article. ZXC was successful at first instance and this was confirmed by the Court of Appeal.³ The Supreme Court dismissed B's appeal: an individual being investigated for a crime, in respect of which they had not been charged, has a reasonable expectation of privacy.

Exercise

Can you identify common themes from the above cases?

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Personal privacy

Before the Human Rights Act 1998

18.7 Using the established doctrine of breach of confidence discussed in Chapter 17, on several occasions courts in England have found details of extramarital affairs, private artwork, sexual activities, or photographs to be confidential, and for there to be obligations of confidence.⁴ In a 1903 Scottish case, *M'Cosh v Crow*,⁵ the court found that a photographer was not entitled to display in his window photographs of children which had been taken with their consent. One of the judges, referring to English cases, argued that the relationship between the photographer and the customers was a confidential one. How widely can this extend? There is a continuum between private diaries kept under lock and key and a visit to a park.

18.8 In 1988 in *Spycatcher*⁶ the House of Lords stated that 'the right to personal privacy is clearly one which the law should in this field seek to protect'.⁷ This did not mean, however, that it did so protect. A 1990 report⁸ recommended against the introduction of a statutory tort of infringement of privacy. But when a photographer gained unauthorised access to a hospital in the early 1990s and photographed a celebrity patient,⁹ the law was found to have no means of response,¹⁰ and there was no action for breach of privacy.¹¹

Key points on the pre-Human Rights Act 1998 position

- Some private information was considered confidential for the purposes of breach of confidence.
- Obligations of confidence have been identified when there is no pre-existing relationship.
- But there was still a gap, and no legislation was proposed.

The HRA 1998 and opportunities for privacy

18.9 This section traces the significant impact of the HRA 1998 on breach of confidence, and the impact of the combination on the protection of personal privacy.¹² The HRA 1998 created possibilities for the use of human rights in combination with existing causes of action. Section 6 of the HRA 1998 prohibits a public authority (stated to include a court) from acting in a manner incompatible with Convention rights when, essentially, an alternative approach is available. Convention rights are defined to include Article 8 ECHR, the right to respect for private life, and its exceptions. This would seem to cover situations such as publication of photographs of private events. However, another Convention right is Article 10 ECHR which protects freedom of expression, with its own exceptions.¹³

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Article 8 ECHR

- (1) Everyone has the right to respect for his private and family life, his home and his correspondence.
- (2) There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.

Article 10 ECHR

- (1) Everyone has the right to freedom of expression. This right shall include freedom ... to receive and impart information and ideas without interference by public authority and regardless of frontiers ...
- (2) The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society ... for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence

18.10 The ECHR is addressed to states, not individuals and companies.¹⁴ Early concerns that this would therefore be of limited impact between private entities, were not realised. Articles 8 and 10 ECHR have had a central role in the privacy-related decisions between private entities; and as new social media make it easier for anyone to publish information about another, the opportunities this can provide will continue to be important.¹⁵ Cases establishing the place of Articles 8 and 10 ECHR when courts consider breach of confidence are the decision of the Court of Appeal in *A v B plc* in 2002 (regarding publication of the extramarital activities of a footballer),¹⁶ the House of Lords in *Campbell* in 2004 considered earlier,¹⁷ and the Court of Appeal in *Douglas v Hello!* in 2005 regarding the claims of individuals in respect of their wedding photographs.¹⁸ Further, the European Court of Human Rights (ECtHR) in *Hannover* (regarding photographs taken of Princess Caroline of Hannover, mainly in public places) in 2004 found that states might have positive obligations to introduce measures for exploration by individuals amongst themselves.¹⁹

Key point on the HRA 1998 and individual actions

- National courts can use Articles 8 and 10 ECHR when considering actions for breach of confidence.

p. 730 Privacy actions in Scotland

18.11 It is generally understood that there is no separate action for breach of privacy in the UK²⁰ and in seeking to control information parties will need to rely on the action for misuse of private information (and/or breach of confidence). A judgment of the Outer House of the Court of Session, *C v Chief Constable of the Police Service of Scotland*,²¹ alongside a consideration of misuse of private information also confirmed ‘that a right of privacy exists in terms of the common law of Scotland’.²²

Misuse of private information

18.12 So how did Articles 8 and 10 combine with breach of confidence and to what end? The key development came in 2004, when the House of Lords considered the question in *Campbell* which, despite the number of subsequent cases, still warrants detailed consideration.²³ Although different approaches were adopted by the Law Lords, key principles can be extracted for present purposes. There was still no overarching claim for invasion of privacy,²⁴ but they found that breach of confidence could and did deal with personal information.²⁵ Further, although they considered that, the necessary relationship of confidence (at the core of the action as discussed in Chapter 17), might be identified in personal information cases, it was ‘awkward’ to have to distinguish information from relationship.²⁶ Accordingly, in *Campbell* the House of Lords considered the action in this context would be better referred to as misuse of private information.²⁷ and the correct first question to be posed was whether the information was private. Information would be private if there was a reasonable expectation of privacy.²⁸ If there is a reasonable expectation of privacy, then Article 8 is engaged. The existence of the action was noted when the Court of Appeal confirmed, regarding a

procedural formality, that misuse of private information was to be treated as a tort; moreover, breach of confidence and the misuse of private information are separate causes of action.²⁹ It is thus possible for uses of information to give rise to both breach of confidence and misuse of private information actions.³⁰

Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-18-guidance-on-answering-the-discussion-points?options=showName>>.

Lord Hoffmann in *Campbell* considered there to have been a ‘shift in the centre of gravity’ of breach of confidence regarding personal information, based not on extended duties of confidence and good faith but on autonomy and dignity.³¹ Do you agree? Review your answer after you have considered the cases discussed in the following section.

p. 731 The reasonable expectation of privacy

18.13 The House of Lords in *Campbell* considered that it would usually be obvious when there was a reasonable expectation of privacy.³² Yet case law suggests that the ‘reasonable expectation of privacy’ will frequently give rise to uncertainty. The ECtHR in *Hannover* in 2004 considered that private life within Article 8 covered physical and psychological integrity; and that, even in public, public figures might engage in private acts in respect of particular zones of life.³³ The Court of Appeal in *Douglas v Hello!* in 2005 considered that the test must cover information personal to the person possessing it, which they do not intend to be shared with the general public; and that this might be clear from the nature or form of the information.³⁴ Another example is below.

■ *Duchess of Sussex v Associated Newspapers Ltd* [2021] EWHC 273; [2021] EWCA Civ 1810

A private letter sent by a member of the Royal Family to her estranged father gave rise to a reasonable expectation of privacy. AN had published extensive quotations from the letter. AN appealed against summary judgment at first instance for misuse of private information and copyright infringement. The appeal was dismissed. The letter was ‘was plainly correspondence containing matter relating to the claimant’s family life, so that article 8 was engaged’³⁵ and it did not matter that the Duchess of Sussex was aware her father may share the letter with the media. Interference with AN’s freedom of expression was held to be proportionate given the vast extracts that had been published.

18.14 The expectation can exist not only in respect of public figures engaging in private acts, but also those who are not public figures.³⁶ It might seem less likely that the media would be interested in such persons—but the growth of social media means that boundaries between the private and the public have become blurred (eg blogging has been found to be a public activity, and the identity of bloggers was not information in respect of which there is a reasonable expectation of privacy).³⁷

18.15 There is also the potential for all lives to come into the media spotlight without having sought it. The extent to which the existing court process can protect, for example, the privacy of the parents of murdered children effectively is one of the issues considered by the Leveson Inquiry,³⁸ which reported in 2012.³⁹

p. 732 **18.16** An important decision regarding when there might be an expectation of privacy is that of the Court of Appeal in 2008 in *Murray*,⁴⁰ regarding the publication of a photograph of the son of JK Rowling, the author of the Harry Potter books. The photograph was taken, without consent, with a long-range lens when the child was being pushed along an Edinburgh street in his buggy. This is a photograph of an individual who is not a celebrity. The court at first instance⁴¹ considered this to be an attempt by JK Rowling to exercise her own rights, and held that she could not have rights in respect of walking down the street. Yet the Court of Appeal considered that her son had his own rights, that he had a reasonable expectation of privacy,⁴² and that these may, in some circumstances, be greater than those of his well-known mother. The Court of Appeal stressed that the reasonable expectation of privacy must always be assessed on the basis of the facts of each case and there could be no guarantees of privacy,⁴³ but that the following questions could be taken into account:⁴⁴

the attributes of the claimant, the nature of the activity in which the claimant was engaged, the place at which it was happening, the nature and purpose of the intrusion, the absence of consent and whether it was known or could be inferred, the effect on the claimant and the circumstances in which and the purposes for which the information came into the hands of the publisher.

While the ‘*Murray* factors’ are not exhaustive and application will depend on the facts of a particular case they remain an important guide.⁴⁵ It is interesting to note that in 2015, the Supreme Court found that there was no reasonable expectation of privacy in respect of photographs taken by CCTV of the alleged commission by a boy of a public order offence.⁴⁶

18.17 In addition to information relating to children, another area which has received much attention is personal and sexual relationships. Cases suggest that the details of the existence of intimate relationships (as well as information obtained in the course of them) may be private, but this varies with the degree of stability;⁴⁷ details of sexual orientations, in circumstances where there was evidence that others knew of the position, has not been found to be information in respect of which there was a reasonable expectation of privacy.⁴⁸ Below is an example of a case concerning intimate relationships.

■ *PJS v News Group Newspapers Ltd* [2016] UKSC 26

PJS was the spouse of a celebrity with whom he had two children. The case concerned an interim injunction against the publication of information of sexual activities of PJS disclosed by one of his former sexual partners. The court at first instance refused to grant the injunction, but this was overturned by the Court of Appeal. However, following the publication of the information in media outlets in the United States, Canada, and Scotland and also on social media, the Court of Appeal discharged the injunction. PJS appealed. The Supreme Court acknowledged that a significant part of the population of England was aware of the identity of PJS and his spouse. However, the majority did not consider that the extent of the disclosure, especially in light of the distress that would be caused by further publication, was sufficient to lift the injunction.

p. 733 18.18 Some other guidance can be extracted from the case law. Information will not be private if it is generally accessible (to be more flexibly applied than in respect of commercial information);⁴⁹ or if it relates to a criminal act (there is uncertainty here—drug taking might be private, but domestic violence or tax evasion would not be),⁵⁰ although Article 8 was engaged by the police taking photographs, and keeping them, of a person's participation at a demonstration.⁵¹ In respect of (potential) criminal activity a distinction needs to be made between information about investigations and information in situations where an individual has been charged with an offence.⁵² *Bloomberg LP v ZXC*⁵³ indicates that there is a reasonable expectation of privacy before an individual is charged and, moreover, that the concept of 'private life' can encompass an investigation into 'business activities' and account for reputational harm.⁵⁴ It not necessary to show that information is confidential:

[I]nformation may be private but not confidential, or confidential but not private. To prove that information is private it is not necessary to show that it is confidential. Often, however, confidentiality and privacy will overlap and confidentiality may well be relevant to whether there is a reasonable expectation of privacy.⁵⁵

18.19 The existence of an expectation in another jurisdiction (say California) can be considered but this will not necessarily mean that one would be found.⁵⁶ Finally, it is not necessary that a publisher knows or ought to know that there is a reasonable expectation of privacy—a marked but logical contrast to the position in respect of the obligation base for breach of confidence.⁵⁷

Key points on reasonable expectation of privacy

- Expectation of privacy depends on the facts (but see *Murray* factors).
- Even public figures can have an expectation of privacy.

- It is less likely to apply to publicly available information.
- It is more likely to apply to details of sexual relationships/long-standing relationships.

Pictures and images

18.20 *Campbell, Murray, and Hannover*, amongst others, involve photographs. The importance of photographs was also considered by the ECtHR in 2009 in *Reklos v Greece*,⁵⁸ regarding a photograph of the face of a newborn baby in a supposedly secure unit.⁵⁹ The ECtHR considered that the right to private life was, again, not ‘susceptible to exhaustive definition’,⁶⁰ but that it did cover rights to identity, personal development, and personality; and image was considered to be one of the key parts of personality.⁶¹ This was confirmed in a further case before the ECtHR in 2012 involving Princess Caroline of Hannover.⁶² The image is:⁶³

one of the chief attributes of ... personality, as it reveals the person’s unique characteristics and distinguishes the person from his or her peers. The right to the protection of one’s image is thus one of the essential components of personal development. It mainly presupposes the individual’s right to control the use of that image, including the right to refuse publication thereof.

Key point on image

- Publishing a photograph of someone raises special issues for privacy.

Exercise

Review the scenario you developed in the Exercise following para 18.4. Would there be a reasonable expectation of privacy?

Impact of Article 10

18.21 The previous discussion could lead to an identification of information in respect of which there is a reasonable expectation of privacy, and so Article 8 is engaged and relevant. But this is, of course, not the end of the story. Article 8 must then be balanced with Article 10,⁶⁴ to establish whether the disclosure and publication is in fact misuse of private information. *Campbell* provides that the balance is to be rational, fair, and not arbitrary.⁶⁵ Each right is to be afforded equal weight at the outset,⁶⁶ and to be encroached upon no

more than is necessary and proportionate.⁶⁷ The weight accorded to freedom of expression will vary with the facts. Some forms of expression deserve greater weight—political and educational speech receiving more than celebrity gossip.⁶⁸

18.22 Carrying out this balance can be difficult. For example, the ECtHR in *Hannover* in 2004 indicated that the interests of the free press would prevail over Article 8 rights if publication contributed to debate in the general interest. There was a fundamental distinction between details of public figures in respect of their official functions, and details of their private lives; only in respect of the official functions should the press be a watchdog in the general interest.⁶⁹ A second set of cases was then raised by Princess Caroline of Hannover, involving a photograph of Princess Caroline and her husband walking down the street in St Moritz and photographs with her father Prince Rainier of Monaco, in the context of a discussion of his health. This reached the ECtHR again.⁷⁰ The ECtHR found that Germany's approach was not unreasonable; there is a margin of appreciation for states to take their own approaches to balancing Articles 8 and 10. There was a 'zone of interaction'⁷¹ which, even if in public, might involve private life; freedom of expression extended to ideas that offend or shock; in a democratic society the press has an 'essential role'; and that regard should be had to the nature of the report, the 'prior conduct' of the person involved, the nature of publication, and circumstances of the photographs.⁷²

p. 735 ↪ **18.23** The *Hannover* decisions are important, as under the HRA 1998, courts are required to have regard to ECtHR decisions, and, for example, have looked to *Fressoz v France*⁷³ and the 2006 decision in *Editions Plon v France*.⁷⁴ English courts have also looked to Resolution 1165 of the Council of Europe (passed in the aftermath of the death of the Princess of Wales, regarding the relationship between Article 8 and Article 10 ECHR).⁷⁵ However, courts in the UK are not obliged to follow the ECtHR decisions,⁷⁶ and where there is a conflict between decisions of the House of Lords and the ECtHR, the House of Lords (and now the Supreme Court) must be followed.⁷⁷

18.24 Even with ECtHR guidance, the carrying out of this balance is difficult and hard to predict.⁷⁸ The Court of Appeal has rejected an argument⁷⁹ that once a person reveals information about one zone in their life, they have a lower expectation of privacy in that zone,⁸⁰ and also that particular weight should be given to the Article 8 rights of children when balancing those rights.⁸¹ Courts have considered it relevant if information is being disclosed to correct a 'false image' (used in this case in respect of a reputation, rather than a photograph) which has been created in respect of a person—say, regarding a supermodel's distaste for drugs,⁸² or in respect of arguments that a footballer had now embraced family values.⁸³ This can lead a court down unexpected paths—the court was relieved not to need to decide whether or not the captain of the English men's football team needed to be a role model.⁸⁴ The court also rejected the argument⁸⁵ that conduct of one person in private must be unlawful, before another person should be permitted to criticise it in public on the basis of freedom of expression—'not all conduct that is socially harmful is unlawful'.⁸⁶

18.25 The court should take into account whether in all the circumstances it was in the public interest that the obligation of confidence should be breached: was a fetter on free expression necessary in a democratic society; was disclosure justifiable and proportionate in the light of obligations of confidence? Regard should be had to the nature of the information; the nature of the relationship (including whether there was a

contract); and whether in all the circumstances it was legitimate for the information to be kept confidential or whether it was in the public interest for it to be made public.⁸⁷ If there was no contract, was a fetter on free expression necessary in a democratic society; and was disclosure proportionate?⁸⁸

p. 736 18.26 Like *London Regional Transport v Mayor of London* discussed in Chapter 17,⁸⁹ *HRH Prince of Wales* is another example of the ongoing importance of the term ‘the public interest’ in litigation in the HRA era.⁹⁰ As noted by the Court of Appeal in *McKennitt v Ash*, is it ‘perhaps inevitable’⁹¹ that these references to the public interest will continue, both in language and breadth of analysis? Yet the substance of the cases considered suggests that even if references to ‘public interest’ continue (and this is particularly likely in the context of remedies, as considered in Chapter 21, given references to it in s 12 of the HRA 1998), final outcomes will be reached on an ECtHR and Article 10-based approach⁹² irrespective of the basis of claim or type of information.⁹³

18.27 A further example of the balancing of Article 8 and Article 10 involved the publication of details of the participation of Max Mosley, the President of the Fédération Internationale de l’Automobile, the world motorsports body, in group consensual sexual activity of a sadomasochistic nature. There was a reasonable expectation of privacy in respect of participation in consensual sexual acts on private property,⁹⁴ and in considering the Article 10 ECHR arguments, the court found that there was no public interest in publication.⁹⁵

18.28 In a different context, the public interest was considered in *Ali v Channel 5*⁹⁶ regarding the filming of individuals being evicted from their home for a television programme. The claimants’ Article 8 rights were found to be engaged and the restriction of the defendant’s Article 10 rights was justified, with the court noting that the television programme focused on creating drama between the claimants and the landlord and not on issues of public interest.⁹⁷

Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-18-guidance-on-answering-the-discussion-points?options=showName>>.

A magazine publishes pictures of an actor leaving what is tipped to be the new fashionable beauty store. She is not happy as she has just signed a contract with a competitor. Discuss.

Key points on the impact of Article 10

- Article 8 and Article 10 start with equal weighting.
- The impact of Article 10 depends on facts and proportionality, but could look to:

the nature of the report;
the prior conduct of the person involved;
the nature of the publication;
the circumstances of the photos;
genuine debate or curiosity;
↵ correction of false image;
an obligation of confidence;
public interest.

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Impact of data protection

18.29 An action for misuse of private information may be brought at the same time as a data protection claim.⁹⁸ Sensitive personal data under the Data Protection Act 1998, such as data relating to race, health, sexual orientation, and political and religious beliefs, has also been viewed as private for the purpose of identifying what information qualifies as private.⁹⁹ Data protection grounds were also raised, albeit unsuccessfully, in *Campbell*.¹⁰⁰ In Scotland, the Data Protection Act 1998 was deployed (unsuccessfully) in *Beyts v Trump International Gold Club Scotland Ltd*¹⁰¹ in which a protester against a golf course development was photographed by golf course staff.¹⁰² The Data Protection Act 1998 has now been largely superseded by the Data Protection Act 2018, which largely reflects the EU General Data Protection Regulation (GDPR).¹⁰³

18.30 Data protection is also relevant in the employment context. *WM Morrison Supermarkets plc v Various Claimants*¹⁰⁴ concerned the criminal disclosure by a disgruntled employee of information about 99,998 employees including information such as their date of birth, gender, and bank account details. The employer was initially held to be vicariously liable for breach of confidence and misuse of private information¹⁰⁵ but this was overturned on appeal.¹⁰⁶ In another case, only the data protection claim was successful in respect of a customer suing a company following a cyberattack and subsequent disclosure of personal data.¹⁰⁷

Key points on personal privacy

- Key question (1): is there information in respect of which there is a reasonable expectation of privacy? If so, Article 8 is relevant.
- Key question (2): is it proportionate for disclosure of information to be prevented given Article 10 rights?

- A careful balance of Articles 8 and 10 is required—weight of Article 10 will vary with the type of expression, and the weight of Article 8 will vary with the context—public figures still have private lives.
- ↶ Decisions of the ECtHR and the Council of Europe Resolution are highly influential.
- Some aspect of personal privacy may be protected through other legislative means such as data protection law.

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Merchandising

Persons and characters

18.31 This section moves from individuals wishing to keep information secret, to situations when companies or individuals wish to control the use which they and others can make of their commercial reputation and, colloquially, their brand. So, this discussion takes us back to trade marks and passing off. Merchandising can apply to real-world personalities—for example a well-known sportsperson—or entirely fictitious, for example cartoon or puppet characters in a television series such as *In the Night Garden*.

18.32 Merchandising might involve putting on the market a variety of products bearing the name or image of the person or character, or reproducing the image in either two- or three-dimensional form. This form of marketing is known as *spin off* or *character merchandising* when applied to fictional characters or entities, *personality merchandising* when the character is a real person. The boundary between character and personality merchandising may become blurred when, for example, the personality of an actor well known in a particular role is exploited in this sort of way.

Trade marks

18.33 Starting with a fictional but actual example, a trade mark was obtained for the cartoon character ‘Betty Boop’. In a merchandising dispute, challenges to its validity on grounds of distinctiveness failed, and the trade mark was found to be infringed. The court stated that it would have taken a different approach to validity if there had been sale of general film memorabilia from the 1930s; The court also stressed that there is no discrete right in England to control images, and that invented characters and real-life characters should be approached in the same way.¹⁰⁸

18.34 In real life, imagine that a fan of tennis player Serena Williams took a photograph of her as the fan was walking down the street, and applied that picture to the front of a T-shirt to be sold on market stalls. If a photograph of Williams had been registered as a trade mark in connection with articles of clothing, that fact might prevent any picture being applied to a T-shirt by another: one picture of Williams is likely to be similar to another.

Question

Read this last example again. What defence from registered trade mark law might the T-shirt vendor have in the given circumstances? You could have a look at paras 15.95ff.

Exercise

Choose the name of a well-known individual. Search both the UK Intellectual Property Office (UK IPO) register and the European Union Intellectual Property Office (EUIPO) register to see if you can find any registered trade marks consisting of or including that name.

p. 739 ↩ **18.35** Signatures of celebrities, both alive and dead, have been registered as trade marks in the UK. An example is Marilyn Monroe's signature, which was registered in class 3 in connection with cosmetics, soaps, shampoos, and foamable preparations for the bath.¹⁰⁹

18.36 So a signature might be distinctive for the purposes of trade mark law¹¹⁰ because of the script used and thus registerable. However, the registration of celebrity names as such has proved more problematic and has been called into question since the appeal in *Elvis Presley Enterprises Inc v Sid Shaw Elvisly Yours*.¹¹¹ This is a good example of the legal arguments and policy dilemmas which arise in this field.

18.37 The Court of Appeal upheld the decision to overturn registrations of a variety of styles of the name 'Elvis Presley'. The Court decided that a celebrity name was not registerable as a trade mark as it was not distinctive. The Court appeared aware of the broad monopoly power that could be conferred on traders if celebrity names could be registered as trade marks. In the words of Simon Brown LJ (at 598):

there should be no a priori assumption that only a celebrity or his successors may ever market (or licence the marketing of) his own character. Monopolies should not be so readily created.

18.38 The *Elvis Presley* case dealt with the law as it stood under the Trade Marks Act 1938 and it is not clear that the same result would have been achieved had the 1994 Act been in operation. Nonetheless, it has been followed in the decision by the trade mark registry to turn down the application to register the name 'Diana, Princess of Wales' as a trade mark.¹¹² In refusing the application, the registry emphasised that a name unique to a particular person did not of itself have distinctive character as a trade mark. The essential function of a trade mark was to guarantee that the items bearing it had originated under the control of a single undertaking responsible for their quality. Unless, therefore, such control could be shown, the use of a famous name to endorse a product was not a trade mark use. It would thus seem that the better known the personality, the less likely it is that a name will be registered as a trade mark because the name is not

considered distinctive in the trade mark sense, as was seen in the ‘Alex Ferguson’ case.¹¹³ But note the EU trade mark (EUTM) registration for ‘Usain Bolt’ (009787581)—does it depend on the nature of the underlying person and the means by which they have become known?

18.39 There are many examples, however, of the names of living and dead well-known personalities becoming distinctive and being registered as trade marks: Gucci, Dior, Versace, and Naomi Campbell¹¹⁴ are all examples.

Exercise

Have a look at the *Manual of Trade Marks Practice*.¹¹⁵ What does it say about the registration of: famous names, badges of allegiance, names of deceased individuals or defunct groups?

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Key points on persons, characters and trade marks

- The signature of a celebrity may be considered as sufficiently distinctive for registration as a trade mark.
- Where the name of a celebrity is seen as purely descriptive of the subject matter of goods, it will be unregistrable as a trade mark.
- Trade marks can be used to restrict use of fictional characters.

18.40 Even if registration can be obtained, case law suggests that the names of celebrities and other well-known people will have a more limited scope of protection than other trade marks. Consider the following:

■ Case C-361/04 *Ruiz-Picasso v OHIM* [2006] ECR I-643

An application was made by DaimlerChrysler to register ‘Picaro’ for vehicles. The estate of Picasso, owners of the Picasso trade mark for vehicles, objected.

The European Court of Justice (ECJ) rejected the appeal and found that ‘where the meaning of at least one of the two signs at issue is clear and specific so that it can be grasped immediately by the relevant public, the conceptual differences observed between those signs may counteract any visual and phonetic similarities between them’.¹¹⁶ Seeing the word ‘Picasso’ brings to mind the painter: ‘given the painter’s renown with that public, that particularly rich conceptual reference is such as greatly to reduce the resonance with which, in this case, the sign is endowed as a mark, among others, of motor vehicles’.¹¹⁷

18.41 Thus it would appear that when the names of well-known people have been registered as trade marks, the better known the name the narrower the scope of protection will be granted as against similar marks, and the lower the distinguishing capacity of the mark in relation to the goods for which it is registered.¹¹⁸

Question

To what extent do you think the well-known status of a name will be able to displace any likelihood of confusion between the name and the use of the name as a mark?

18.42 Issues also arise with respect to future dealings with trade marks. *Elizabeth Florence Emanuel v Continental Shelf*¹¹⁹ concerned the assignation, by Elizabeth Emanuel, a fashion designer, of the trade mark bearing her name along with a crest made up of two 'E's back to back. After ownership of the trade mark had then changed hands several times, Elizabeth Emanuel opposed a proposed amendment to the registered trade mark and applied for revocation of it on the ground that to let the mark stay on the register would be to deceive the public within the meaning of what is now Article 4(1)(g) of the Trade Mark Directive.¹²⁰

18.43 It was argued that a significant proportion of the relevant public would believe that use of the trade mark indicated that the individual remained involved with the design or creation of the goods in relation to which the mark was used, and so using the name mark in a business in which the individual was not concerned would be deceptive. The Court did not accept this argument. The Court ruled that a trade mark which corresponds to the name of the designer and first manufacturer of the goods is not, for that reason, liable to revocation on the ground that that mark would mislead the public; this was particularly so where the goodwill associated with that mark has been assigned when the business was sold.¹²¹

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18.44 Although this might seem an odd result if the view is taken that a consumer might be confused that the named individual designer had not actually had a hand in designing the goods, it undoubtedly reflects what happens in commercial life.

18.45 Consider, however, that in 2012 the ECJ considered an application for 'Elio Fiorucci'. The individual Elio Fiorucci, who had owned Fiorucci SpA and had been very well known as a designer in the 1970s, objected, including with reference to protection of well-known names by Italian law. The Court found that the right to this name applied not only to use in a commercial context, but also to personality.¹²²

Key points on well-known name trade marks

- The better known a name, the more likely it is that any confusion due to visual, aural, or conceptual similarities as between similar names may be displaced.

- An assignation of a trade mark consisting of the name of a well-known individual is not liable to be revoked purely on the ground that the individual no longer remains involved with the business carried on under the mark.
- The well-known individual might be able to have an impact on future applications.

18.46 As well as the name of a well-known individual, one might (whether the celebrity or a third party) want to protect their image—in the sense of a picture, what the individual looks like. Early cases suggested that registration would be permissible on the ground that an image is distinctive. As was said in 1897:¹²³

it is difficult to suppose anything could be more distinctive than the portraiture of the man who was professing to be the manufacturer of that particular article.

18.47 However, the UK IPO refused to register images of the late Diana Princess of Wales as trade marks.¹²⁴ Applications were made to register 52 different images for a wide variety of goods and services. Unfortunately, the reasoning behind the refusal has not been made public, so one can only speculate as to what it might have been. In trade mark terms, the registry may have decided that the images were not distinctive. Diana was, after all, one of the most photographed people in the world for a number of years. Another ground for refusal might have been that there was no trade connection between the images and the goods and services in respect of which they were to be registered. Equally, there may have been a lack of any form of quality control over those products and services: an argument similar to that used to turn down the application to register her name as a trade mark.¹²⁵

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Exercise

Have another look at the *Manual of Trade Marks Practice*. What does it say about the registration of pictures of famous persons?

18.48 It thus appears that neither the name (as opposed to the signature) nor the image of a well-known individual will be accepted in the UK for registration as a trade mark for certain goods unless the mark has acquired distinctiveness through use. For some goods the signs will be unregistrable. For those names and images that are already registered it may be that in any dispute with a third party the scope of protection will be narrow or the registration vulnerable to being declared invalid as being merely descriptive of the goods for which it is registered. The more famous you are, the harder it might be to obtain a trade mark.

Key points on trade marks and the image of a celebrity

- The name and image of a celebrity can be registered as trade marks in certain circumstances.
- For some goods, the signs will be unregistrable as they will not be considered as indicating origin.

Exercise

Should a well-known, or any, individual be able to protect elements of their personality as a registered trade mark? And what elements of their personality? If it were possible, what effect might this have on the availability of consumer goods in the marketplace?

Passing off

18.49 Passing off has been used when misrepresentations have been made in respect of authors, artists, or their work. It has been passing off for the author of any creative work to attach to it the name of another author, perhaps especially if that name is an author's pen name;¹²⁶ the author of a highly successful dramatic sketch was able to prevent a film being publicised as a version of his sketch;¹²⁷ and there may be passing off if the fanciful name of a musical band is used by another band.¹²⁸ When the *London Evening Standard* published a satire of the diaries of Alan Clark, an MP, this was found to be passing off; not enough had been done by the newspaper to remove the possibility of confusion in the mind of the typical reader.¹²⁹

18.50 A greater variety of approaches has been taken in respect of merchandising. A court in Hong Kong held that an author may claim goodwill in a fictional character, and that a film producer who has a licence to use the story creating the character can also build up goodwill in it, which may be protected by a passing off action.¹³⁰ The 'Crocodile Dundee' cases in Australia¹³¹ illustrate how the image of an actor and his character may coalesce. Paul Hogan played the character Crocodile Dundee in a series of films, which he also wrote. These cases involved the defendants' sale of goods making use of the 'Crocodile Dundee' name and image, and the Australian courts held that Hogan himself could bring an action for passing off.

p. 743 ↪ **18.51** Yet, save in the *Ninja Turtles*¹³² case discussed previously, the English courts have been reluctant to recognise that the use of characters or personalities can be stopped by their originator, especially if they have not yet commenced trading operations using them. The argument is that goodwill, as distinct from reputation, is necessary before there can be a claim of passing off. Examples of unsuccessful claims include the following:

- Uncle Mac, children's radio character in *McCulloch v May* (1948) 65 RPC 58;
- Sherlock Holmes in *Conan Doyle v London Mystery Magazine Ltd* (1949) 66 RPC 312;
- Wombles of Wimbledon in *Wombles v Womble Skip* [1977] RPC 99;

- ABBA pop group in *Lyngstad v Anabas* [1977] FSR 62;
- Teletubbies in *BBC Worldwide v Pally Screen Printing* [1998] FSR 665.

18.52 Even where the character or personality is already being used under licence to market goods, English judges have found that the use of the image is not seen by the public as a representation of a connection with, or authorisation by, the originator of the character or individual in question. If there is a false claim of authorisation—for example, a claim that the merchandise is ‘official’—then, but only then, may there be a misrepresentation.¹³³ This use of such wording can lead to some complex arguments and, indeed, can be a double-edged sword.¹³⁴ In 1997, the pop group ‘The Spice Girls’¹³⁵ sought an application for an injunction to prevent an unauthorised trader selling ‘Spice Girls’ sticker collections. The court rejected arguments that the absence of the word ‘unofficial’ was sufficient to influence the public’s perception of the origin of the goods.

18.53 Against this backdrop, the 2014 ‘Betty Boop’ decision (see para 18.33) in respect of trade marks, is significant. The court found that the three established elements of goodwill, misrepresentation, and likelihood of damage were met; notably, the public was likely to think that the two sets of merchandise in question came from the same source.¹³⁶

Key point on character and personality merchandising—passing off

- Courts have been reluctant to allow the action for the unauthorised use of fictional characters and real persons in the marketing of products—evidence is key.

Key points on merchandising

- Passing off can prevent some forms of merchandising.
- Trade marks can provide the right to control the use of name, signature, and image (picture) in some cases.
- The protection which exists stems from established principles—there is no dedicated comprehensive protection which applies to merchandising in its many forms.

p. 744 Endorsement and sponsorship

Passing off and false endorsement

18.54 There is an important distinction between character and personality merchandising and endorsement, as Laddie J explained in the English decision *Irvine*:¹³⁷

When someone endorses a product or service he tells the relevant public that he approves of the product or service or is happy to be associated with it. In effect he adds his name as an encouragement to members of the relevant public to buy or use the service or product.

Merchandising is rather different. It involves exploiting images, themes or articles which have become famous ... It is not a necessary feature of merchandising that members of the public will think the products are in any sense endorsed [by the personalities or characters concerned].

18.55 The early view of the English courts was that, even if there was appropriation of goodwill by the false endorsement, the business being made by the defendant from its activities was not custom that would otherwise have gone to the person represented as making the endorsement.¹³⁸ English courts have looked in the past to defamation to address this type of scenario, for example when a champion amateur golfer was portrayed with a Fry's chocolate bar in an advertisement for that product, implying that he had been paid for an endorsement of the product, which was inconsistent with this amateur status.¹³⁹ By contrast, in the early Scottish decision of *Wilkie v McCulloch*,¹⁴⁰ a firm was stopped from representing that its ploughs were made under the inspection and authority of an individual who had developed a new kind of plough.

Exercise

How far does and should the law of passing off go in offering protection to aspects of individual personality against use by others constituting misrepresentation? What aspects of personality in addition to name, designation, and voice used in one's trade or profession might be covered? Is this the same as your approach in respect of trade marks?

18.56 A significant change in approach was taken in England by Laddie J in *Irvine*, which was approved by the Court of Appeal.¹⁴¹ Eddie Irvine, a Formula 1 racing driver, was shown in a promotional brochure for Talksport Radio wearing his Ferrari racing gear and apparently listening intently to a radio marked with the Talksport insignia. This was, however, the result of manipulation of a photograph (lawfully acquired for reproduction by Talksport) which actually showed Irvine using a mobile telephone. It was held that this was passing off. Laddie J said:¹⁴²

[I]t is common for famous people to exploit their names and images by way of endorsement. They do it not only in their own field of expertise but, depending on the extent of their fame or notoriety, wider afield also. It is common knowledge that for many sportsmen, for example, income received from endorsing a variety of products and services represent a very substantial part of their total income. The reason large sums are paid for endorsement is because, no matter how irrational it may seem to a lawyer, those in business have reason to believe that the lustre of a famous personality, if attached to their goods and services, will enhance the attractiveness of those goods or services to their target market. In this respect, the endorsee is taking the benefit of the attractive force which is the reputation or goodwill of the famous person.

- p. 745 ↩ 18.57 The Court of Appeal applied *Irvine* when the retailer Topshop used an image of the well-known singer Rihanna on T-shirts, without her consent.¹⁴³ It found a relevant misrepresentation, through a false endorsement, although (once again) there is no right to protection of one's image. Here, although Rihanna had authorised the use of her name and image in other cases, it was for her, not the shop, to decide if this was to happen again; and the fact that she had had connections in the past made it more likely that consumers would think there was an endorsement this time.¹⁴⁴

Key point on endorsement

- *Irvine* is authority that false endorsement is passing off because endorsement is established as a lucrative way in which personalities may exploit their fame.

Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oupsupport.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-18-guidance-on-answering-the-discussion-points?options=showName>>.

Do you agree that the endorsement of a well-known personality can be a source of goodwill? Does Article 8 ECHR require the protection of such goodwill? Whose goodwill is it—the trader whose products are endorsed or the personality doing the endorsing? And consider how your conclusions here relate to your views formed earlier regarding privacy.

Intellectual property and sponsorship agreements

18.58 As considered by Laddie J in *Irvine*, well-known personalities, characters, and businesses will frequently enter into agreements regarding the use of their name and image. Examples might be the sponsorship agreement entered into by various companies in respect of the Olympic Games; and, for example, the agreement between tennis player Andy Murray and Rado regarding a watch, which led to visible concern when he could not find the watch after winning the US Open in 2012.¹⁴⁵

18.59 Yet, as seen previously in the discussion of passing off, endorsement, and trade marks,¹⁴⁶ the legal basis for this may be slim. As also noted in respect of passing off, the courts remain rather sceptical of the place of commercial reality and benefiting from one's profile. An important example comes from the decision in *LNS*,¹⁴⁷ which involved the publication in a newspaper of the fact of a sexual relationship involving the then English men's football captain with the partner of another member of the team. For present purposes,

the court had concerns about the material put before it, and considered that the main priority of the footballer's business advisers was not privacy but the damage to commercialisation and sponsorship opportunities which could result.¹⁴⁸

p. 746 18.60 Whatever the attitude of the law, contracts involving image continue to exist, and give rise to their own disputes, such as *Proactive Sports Management v Rooney and Others*.¹⁴⁹ The agreement, which was entered into when footballer Wayne Rooney was very young, was ultimately found to be unenforceable as being in restraint of trade; but no issues arose as to whether or not there was such a thing as image rights.¹⁵⁰ The Court of Appeal then dismissed an appeal regarding restraint of trade.¹⁵¹

Exercise

Look up *Proactive Sports Management v Rooney* [2010] EWHC 1807 (QB) (it is very long). Review the list of image rights extracted from the agreement, in paras 53 and 187 of the judgment, and details of brand development activities in paras 198 and 221–23. Reflect on this in the light of your work in this chapter so far.

Key point on sponsorship

- Image rights lie at the heart of commercially valuable contracts.

Control of (public) image

18.61 The English courts took a different approach to the impact of agreements regarding confidentiality and the photographs. As discussed in Chapter 17 and previously, despite the size of their wedding, the Court of Appeal found that the wedding of Michael Douglas and Catherine Zeta-Jones was private, and that photographs of it were confidential. Douglas and Zeta-Jones succeeded in an action for both breach of confidence and misuse of private information when *Hello!* magazine published unauthorised photographs. The issue of present interest, also touched on in Chapter 17,¹⁵² is whether or not *OK!* could sue *Hello!*

18.62 The House of Lords¹⁵³ found that Douglas, Zeta-Jones, and *OK!* had entered into an agreement that each picture taken of the wedding would be a separate piece of information which *OK!* would have the exclusive right to publish—quite apart from the other pictures which had been published by *OK!*¹⁵⁴ So, *OK!* could sue *Hello!* Yet the focus must be on the trading, the contract,¹⁵⁵ and confidential information and the level of control held over it,¹⁵⁶ rather than reputation, image,¹⁵⁷ and the market value of the information.¹⁵⁸

There have been arguments that this risks turning information into a property right—which was also considered more generally in Chapter 17.¹⁵⁹ Conversely, there are both economic and dignity-based justifications for celebrities to be able to control their reputation and public image.¹⁶⁰

Key points on agreements and control of information

- There can be agreements that information is confidential.
- The parties to this can sue others if they publish it—this is not an image right.

p. 747 ↶ **18.63** Other jurisdictions have different approaches to control of public image and personality. In New York, legislation provides that one should not use the name, portrait, or picture of a living person without consent.¹⁶¹ In California, one should not use the name, voice, signature, or photograph without prior consent.¹⁶² Germany has a law on ‘personality rights’,¹⁶³ though freedom of expression can prevail over these (with more regard had to the personality rights of those under 18).¹⁶⁴ German copyright law requires that there must be consent to the publication of an image, but not if the publication involves an issue important to contemporary society.¹⁶⁵

Discussion point

For answer guidance visit [www.oup.com/he/brown6e](https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-18-guidance-on-answering-the-discussion-points?options=showName) <<https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-18-guidance-on-answering-the-discussion-points?options=showName>>.

Should there be an image right in the UK? If so, what would it look like?

Further reading

Books

H Beverley-Smith, A Ohly, and A Lucas-Schloetter, *Privacy, Property and Personality: Civil Law Perspectives on Commercial Appropriation* (2005)

G Black, *Publicity Rights and Image: Exploitation and Legal Control* (2011)

N Moreham, M Warby, M Tugendhat, and I Christie (eds), *Tugendhat and Christie: The Law of Privacy and The Media* (3rd edn, 2016)

EC Reid, *Personality, Confidentiality and Privacy in Scots Law* (2010)

D Tan, *The Commercial Appropriation of Fame: A Cultural Analysis of the Right of Publicity and Passing Off* (2017)

Articles and chapters

General

G Black, 'Publicity and image rights in Scots law' (2010) 14(4) Edin LR 364–84

H Carty, 'The common law and the quest for the IP effect' [2007] IPQ 3, 237–66

F Hofmann, 'The right to publicity in German and English law' [2010] IPQ 3, 325–40

Privacy, human rights, and the media

T Aplin, 'Filling the IP gap: privacy and tabloidism' in M Richardson and S Ricketson (eds), *Research Handbook on Intellectual Property in Media and Entertainment* (2017)

T Aplin and J Bosland, 'The uncertain landscape of Article 8 of the ECHR: the protection of reputation as a fundamental human right?' in AT Kenyon (ed), *Comparative Privacy and Defamation Law* (2016)

E Barendt, 'Problems with the "reasonable expectation of privacy" test' (2016) 8 JML 2, 129–37

A Hurst, 'Data privacy and intermediary liability: striking a balance between privacy, reputation, innovation and freedom of expression' (2015) 26 Ent LR 6 187–95

K Hughes, 'The public figure doctrine and the right to privacy' (2019) 78 CLJ 70

p. 748 ↵ R Moosavian, 'Stealing souls: Article 8 and photographic intrusion' (2018) 69(4) NILQ 531–58

B Pillans, 'Private lives in St Moritz: Von Hannover v Germany (no 2)' (2012) 17(2) Comms L 63

E Reid, 'Case comment. No sex please, we're European: Mosley v News Group Newspapers Ltd' [2009] 13(1) Edin LR 116

M Richardson and G Dinwoodie, 'Publicity right, personality right, or just confusion?' in M Richardson and S Ricketson (eds), *Research Handbook on Intellectual Property in Media and Entertainment* (2017)

A Taubman, 'Is there a right of collective personality?' (2006) 28(9) EIPR 485–92

Personality and passing off

C Ng, 'The law of passing off—goodwill beyond goods' (2016) 47 IIC 7, 817–42

YH Lee, 'Putting a face to the game: the intellectual property implications of using celebrity likenesses in video games' (2018) 13(2) JIPLP 143–53

E Oke, 'Image rights and passing off: should reputation be enough for celebrities to succeed in English courts?' (2020) 15(1) JIPLP 49–54

Notes

- ¹ There is an extensive literature focusing on the protection of personality, eg C Ng, 'The law of passing off—goodwill beyond goods' (2016) 47 IIC 7, 817–42, D Howarth, 'Privacy, confidentiality and the cult of celebrity' [2002] CLJ 264; H Carty, 'Advertising, publicity rights and English law' [2004] IPQ 209; G Davies, 'The cult of celebrity and trade mark: the next installment' (2004) 1(2) SCRIPTed 230; NR Whitty and R Zimmermann (eds), *Rights of Personality in Scots Law: A Comparative Perspective* (2009).
- ² The House of Lords claimed to be united, however, on the questions of principle they considered. See *Campbell v MGN Ltd* [2004] 2 AC 457 at para 36 per Lord Hoffmann.
- ³ [2019] EWHC 970 (QB); [2020] EWCA Civ 611.
- ⁴ *Prince Albert v Strange* (1849) 1 H & T 1; *Argyll v Argyll* [1967] Ch 302; *Stephens v Avery* [1988] 2 WLR 1280; [1988] Ch 449; *X (HA) v Y* [1988] 2 All ER 648; [1988] RPC 379 (see also para 17.49).
- ⁵ (1903) 5 F 670.
- ⁶ *Attorney General v Guardian Newspapers Ltd (No 2)* [1988] 3 WLR 776 ('*Spycatcher*').
- ⁷ *ibid*, 782.
- ⁸ Calcutt Report on Privacy and Related Matters (Cmnd 1102, 1990).
- ⁹ *Kaye v Robertson* [1991] FSR 62.
- ¹⁰ There was voluntary regulation of print media by the Press Complaints Commission, which closed in 2014 and was replaced by the Independent Press Standards Organisation, see www.ipso.co.uk <<http://www.ipso.co.uk>>.
- ¹¹ The limits of the action in respect of non-information matters are evident in the House of Lords' decision, *Wainwright v Home Office* [2003] UKHL 53 regarding strip searching of prison visitors. Regarding negative views of this by the ECtHR, see *Wainwright v United Kingdom* (App No 12350/04) (2007) 44 EHRR 40; *Peck v United Kingdom* (App No 44647/98) [2003] EMLR 15; (2003) 36 EHRR 41; and *Copland v United Kingdom* (App No 62617/00) (2007) 45 EHRR 37.
- ¹² Aplin et al, *Gurry on Breach of Confidence: The Protection of Confidential Information* (2nd edn, 2012), 200–22.
- ¹³ In *Douglas and Others v Hello! Ltd (No 3)* [2005] 3 WLR 881 the Court of Appeal confirmed that the action for breach of confidence was also sufficiently precise to come within the prescribed by law restriction on free expression in Art 10, see paras 141–51.
- ¹⁴ See, eg, G Phillipson, 'Transforming breach of confidence? Towards a common law right of privacy under the Human Rights Act' (2003) 66 MLR 726.
- ¹⁵ *Applause Store Productions Ltd v Raphael* [2008] EWHC 1781 (QB).
- ¹⁶ *A v B plc* [2003] QB 195.
- ¹⁷ *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 17–18, 49, 50.
- ¹⁸ *Douglas and Others v Hello! Ltd (No 3)* [2005] 3 WLR 881 at paras 47–49. Article 8 ECHR was also considered by the Scottish Court of Session in *Martin v McGuinness* 2003 SLT 1424, regarding the conduct of a private investigator that was unlawful. The action, on the basis of the Scots claim of *actio iniuriarum* and Art 8 ECHR failed; there were *obiter* statements that maybe there should now be an action for privacy, but that this was not a live issue in the case.

¹⁹ *Hannover v Germany* (App No 53920/00) (2005) 40 EHRR 1 at paras 57 and 72. Considered also in *McKennitt v Ash* [2006] EWCA Civ 1714 at paras 9–11 and *Reklos v Greece* [2009] EMLR 16 at para 35.

²⁰ See para 17.6 n 3, and also eg *Pryor v Liverpool Women's NHS Foundation Trust* [2021] EWHC 2911 (QB) at para 26 (no general 'invasion of privacy' or 'breach of physical privacy' tort).

²¹ 2019 SLT 875 (no reasonable expectation of privacy in respect of highly offensive messages shared by police officers that were the subject of misconduct proceedings). See E Reid, 'C v Chief Constable of the Police Service of Scotland: the right to privacy affirmed' (2019) 34 SLT 137–40.

²² *C v Chief Constable of the Police Service of Scotland* 2019 SLT 875 at 899.

²³ See also *A v B plc* [2003] QB 195 at paras 4, 6, 9, 11(vi), (xi), (xii), and (xiii). The Court of Appeal did not, however, address ECHR authorities. The Court of Appeal in 2006 held *A v B plc* not to be binding on it in respect of how to conduct the balance in a case on similar facts: *McKennitt v Ash* [2006] EWCA Civ 1714 at paras 60–63.

²⁴ Unlike the position in the United States: see *Campbell v MGN Ltd* [2004] 2 AC 457 at para 11.

²⁵ *ibid*, paras 43–45, 47, 51, referring to *Prince Albert v Strange* (1849) 1 H & T 1, and *Attorney General v Guardian Newspapers Ltd (No 2)* [1988] 3 WLR 776 ('*Spycatcher*').

²⁶ *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 14, 49.

²⁷ *ibid*, para 14.

²⁸ *ibid*, paras 20–21.

²⁹ *Google v Vidal-Hall* [2015] EWCA Civ 311 at para 21.

³⁰ See para 17.49. See also *Imerman v Tchenguiz and Others* [2010] EWCA Civ 908 at paras 66–68.

³¹ *Campbell v MGN Ltd* [2004] 2 AC 457 at para 51.

³² *ibid*, paras 21, 22, 92–94, 135 (and referring to the Australian case *Australian Broadcasting Corporation v Lenah Game Meats Pty Ltd* (2001) 208 CLR 199 at para 42, considered at first instance, see paras 22, 93, 135, 166).

³³ *Hannover v Germany* (App No 53920/00) (2005) 40 EHRR 1 at para 50. In England, see also *X v Persons Unknown* [2007] EMLR 10 and *Price v Powell* [2012] EWHC 3527 (QB).

³⁴ *Douglas and Others v Hello! Ltd (No 3)* [2005] 3 WLR 881 at para 83. This does not mean that seemingly private communications will necessarily give rise to a reasonable expectation of privacy: see *Brake v Guy* [2022] EWCA Civ 235 (personal emails sent by an employee from a general enquiries account).

³⁵ *Duchess of Sussex v Associated Newspapers Ltd* [2021] EWCA Civ 1810 at para 42.

³⁶ The distinction may not be clear-cut: see *Bloomberg LP v ZXC* [2022] UKSC 5 at para 140 (a businessman working for a public company).

³⁷ *The Author of a Blog v Times Newspapers Ltd* [2009] EWHC 1358 (QB) at paras 2–11, 33. See also *JQL v NTP* [2020] EWHC 1349 (QB) (damages and injunction awarded to a woman after her uncle published a Facebook post about her mental health and treatment, information in respect of which she had a reasonable expectation of privacy).

³⁸ The Leveson Inquiry website has been archived: www.levesoninquiry.org.uk <<http://www.levesoninquiry.org.uk>>. For other discussion of the public interest and journalism, see *Mosley v News Group Newspapers Ltd* [2008] EWHC 1777 (QB); [2008] EMLR 20 at paras 135–69; *Flood v Times Newspapers Ltd* [2009] EWHC 2375 (QB); [2010] EMLR 8.

³⁹ Part 2 of the Leveson Inquiry was cancelled in 2018: *Parliamentary Debates*, House of Commons, vol 789, 1 March 2018, col 810. A judicial review of the decision was unsuccessful: *R (on the application of Jefferies and Others) v Secretary of State for the Home Department, The Secretary of State for Digital, Culture, Media and Sport* [2018] EWHC 3239 (Admin).

⁴⁰ *Murray v Express Newspapers plc* [2008] EWCA Civ 446; (2009) Ch 481.

⁴¹ *Murray v Express Newspapers plc* [2007] EWHC 1908 (Ch), reviewed in paras 13 and 44 of *Murray v Express Newspapers plc* [2008] EWCA Civ 446; (2009) Ch 481.

⁴² *Murray v Express Newspapers plc* [2008] EWCA Civ 446; (2009) Ch 481 at para 12.

⁴³ *ibid*, paras 14–20, 27–37, 45, 55–58.

⁴⁴ *ibid*, para 36. Note the approach taken to an older child in *Spelman v Express Newspapers* [2012] EWHC 355 (QB) at paras 35, 46, 53–56 although this decision focuses mainly on whether it is appropriate to grant an injunction.

⁴⁵ *Bloomberg LP v ZXC* [2022] UKSC 5 at para 51.

⁴⁶ *JR38's Application for Judicial Review* [2015] UKSC 42.

⁴⁷ See, eg, *McKennitt v Ash* [2006] EWCA Civ 1714 at paras 29–30 and see para 18.43; *Mosley v News Group Newspapers Ltd* [2008] EWHC 1777 (QB); [2008] EMLR 20 at paras 24, 98–104; *Ferdinand v MGN Ltd* [2011] EWHC 2454 (QB) at para 53, 54, 58; *CC v AB* [2006] EWHC 3083 (QB) (interests of spouses and children could be taken into account); *AAA v Associated Newspaper Ltd* [2013] EWCA Civ 554 at paras 10–37 (disclosure of paternity); *B v D* [2014] EWHC 1442 (QB) (disclosure of sex worker and client relationship).

⁴⁸ *Trimingham v Associated Newspapers Ltd* [2012] EWHC 1296 (QB) at paras 292–94, 305, 309–10, also 311–19 regarding photographs.

⁴⁹ *McKennitt v Ash* (1st instance) [2005] EWHC 3003 at para 81. See also application of test in *McKennitt v Ash* [2006] EWCA Civ 1714 at paras 21–23.

⁵⁰ *A v B* [2005] EWHC 1651, [2005] EMLR 36 at para 32.

⁵¹ Decision of the Court of Appeal, *Wood v Commissioner of Police of the Metropolis* [2009] EWCA Civ 414 at paras 16–46, notably paras 45–46 (and regarding the breadth of what could be private).

⁵² For example, *Richard v BBC* [2018] EWHC 1837 (Ch) (reasonable expectation of privacy regarding a police investigation). There is no reasonable expectation of privacy when an individual is charged with an offence, which is consistent with principles of open justice: *Bloomberg LP v ZXC* [2022] UKSC 5 at para 77.

⁵³ [2022] UKSC 5.

⁵⁴ *ibid*, paras 116 and 125.

⁵⁵ *ibid*, para 150.

⁵⁶ *Weller v Associated Newspapers Ltd* [2014] EWHC 1163 (QB) at paras 45–46.

⁵⁷ See *ibid*, esp paras 129–36, 150–73.

⁵⁸ [2009] EMLR 16.

⁵⁹ *ibid*, para 37.

⁶⁰ *ibid*, para 39.

⁶¹ *ibid*, paras 40–43. For consideration of the parent/child relationship and its impact, see A Carter-Silk and C Cartwright-Hignett, ‘A child’s right to privacy: “out of a parent’s hands”’ (2009) 20(6) Ent LR 212–17.

⁶² *Von Hannover v Germany* (App Nos 40660/08 and 60641/08) [2012] EMLR 16 (ECtHR, Grand Chamber).

⁶³ *ibid*. See also *Weller v Associated Newspapers Ltd* [2014] EWHC 1163 (QB) at paras 64–79.

⁶⁴ *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 29, 85–86, 105, 167; *McKennitt v Ash* [2006] EWCA Civ 1714 at paras 11, 46–47; and *Douglas and Others v Hello! Ltd (No 3)* [2005] 3 WLR 881 at para 53.

⁶⁵ *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 115, 167. Regarding balancing in more extreme factual circumstances, see also *X* (formerly known as *Mary Bell v SO*) [2003] EWHC 1101 (QB); *S (A Child) (Identification: Restrictions on Publication)* [2004] UKHL 47; *Re Attorney General’s Reference (No 3 of 1999)* [2009] UKHL 34.

⁶⁶ *Campbell v MGN Ltd* [2004] 2 AC 457 at para 55; *Hannover v Germany* (App No 53920/00) (2005) 40 EHRR 1 at paras H9, H24, 11, 13, 18, 58–64, 69, 76–79.

⁶⁷ *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 139–141, *McKennitt v Ash* [2006] EWCA Civ 1714 at para 46. In *MGN Ltd v United Kingdom* (App No 39401/04) (2011) 29 BHRC 686 (ECtHR) the ECtHR found that there had been no breach of Art 10 by the finding of the House of Lords in *Campbell*, but found that Art 10 ECHR could be violated, if disproportionate success fees are imposed on the defendant, as this could put pressure on a defendant not to defend their case in court.

⁶⁸ *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 148–49. See also *LNS v Persons Unknown* [2010] EMLR 16 at paras 68–69.

⁶⁹ *Hannover v Germany* (App No 53920/00) (2005) 40 EHRR 1 at paras H20, 63–65. Reference was made to Resolution 1165 (2005) 40 EHRR 1, at *Hannover*, para 67.

⁷⁰ See *Von Hannover v Germany* (App Nos 40660/08 and 60641/08) [2012] EMLR 16 (ECtHR, Grand Chamber).

⁷¹ *ibid*, para 95.

⁷² *ibid*, paras 102–13.

⁷³ (2001) 31 EHRR 2.

⁷⁴ *Editions Plon* (2006) 42 EHRR 36 at paras 49–53. For consideration of the Arts 8 and 10 balancing act, and the place of the public interest, see *AAA v Associated Newspaper Ltd* [2013] EWCA Civ 554 at paras 38–45.

⁷⁵ See *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 53, 107–110, 113–122, 140; *McKennitt v Ash* [2006] EWCA Civ 1714 pays particular regard to these decisions and the need to respect them at paras 37–42, 58–66; and *Mosley v News Group Newspapers Ltd* [2008] EWHC 1777 (QB); [2008] EMLR 20 at paras 18, 21, 99–109.

⁷⁶ HRA 1998, s 2.

⁷⁷ *Murray v Express Newspapers plc* [2008] EWCA Civ 446; (2009) Ch 481 at para 20.

⁷⁸ See generally K Hughes, ‘The public figure doctrine and the right to privacy’ (2019) 78(1) CLJ 70–99; R Moosavian, ‘Deconstructing “public interest” in the article 8 vs article 10 balancing exercise’ (2014) 6(2) JML 234–268.

⁷⁹ Based on *A v B plc* [2003] QB 195.

⁸⁰ *McKennitt v Ash* [2006] EWCA Civ 1714 at paras 53–55.

⁸¹ *ETK v News Group Newspapers Ltd* [2011] EWCA Civ 439 at paras 14ff, in particular para 19 (noting also that children's interests are not overriding).

⁸² *Campbell v MGN Ltd* [2004] 2 AC 457, see, eg, para 24.

⁸³ *Ferdinand v MGN Ltd* [2011] EWHC 2454 (QB) at paras 53, 54, 58, 64, 65, 66, 69.

⁸⁴ *ibid*, paras 87, 89–91.

⁸⁵ *LNS v Persons Unknown* [2010] EMLR 16.

⁸⁶ *ibid*, paras 99–104; see also *Ferdinand v MGN Ltd* [2011] EWHC 2454 (QB) at paras 63, 64.

⁸⁷ *HRH Prince of Wales v Associated Newspapers Ltd (No 3)* [2008] Ch 57 at paras 67–69 and see paras 30–31, 61–63, and 66–68 regarding CA.

⁸⁸ *ibid*, para 67 per Lord Phillips.

⁸⁹ See summary at para 17.14.

⁹⁰ See also *LNS v Persons Unknown* [2010] EMLR 16 at 62–63, 70 et seq and *Ferdinand v MGN Ltd* [2011] EWHC 2454 (QB) at para 68.

⁹¹ *McKennitt v Ash* [2006] EWCA Civ 1714 at para 53.

⁹² See also references in *Campbell v MGN Ltd* [2004] 2 AC 457 at paras 56, 63, 85 (referring to *Spycatcher* then noting in para 86 change since HRA 1998, and also paras 106–10, 116 referring to ECtHR authorities and 142–43).

⁹³ *Douglas and Others v Hello! Ltd (No 3)* [2005] 3 WLR 881 at paras 113–19. See also Aplin et al, *Gurry on Breach of Confidence: The Protection of Confidential Information* (2nd edn, 2012), 699–716 regarding defences. For details of damages payable after a finding of misuse of private information, see *Gulati v MGN Ltd* [2015] EWHC 1481 (Ch)—these should be compensatory, for distress and injury to feelings in the light of what events had taken place (there, phone hacking), and the impact on the values protected by privacy such as autonomy and dignity. The judgment in *Gulati v MGN* was upheld on appeal, subject to a 'small qualification' regarding the effect of repeated disclosures of information: [2017] QB 149 at para 74.

⁹⁴ Despite the subject matter, the court did not consider this to be a 'landmark' case: see *Mosley v News Group Newspapers Ltd* [2008] EWHC 1777 (QB); [2008] EMLR 20 at para 234. But note K Hughes, 'Case comment. Horizontal privacy' (2009) 125 LQR 244–47.

⁹⁵ *Mosley v News Group Newspapers Ltd* [2008] EWHC 1777 (QB); [2008] EMLR 20 at paras 24–25, 110–34, 170–71, 233. Mosley then raised an action at the ECtHR claiming that UK law was in breach of Art 8 ECHR, since it does not provide for a legal duty for newspapers to contact a person before publishing private information related to that person. The ECtHR considered the chilling effect that could arise from this, doubts as to its effectiveness, and the wide margin of appreciation, and considered that Art 8 did not require pre-notification: *Mosley v United Kingdom* (App No 48009/08) (2011) (53) EHRR 30, in particular para 132.

⁹⁶ [2018] EMLR 17.

⁹⁷ *ibid*, para 210. See also on balancing Arts 8 and 10 in an application for an interim injunction: *XKF v BBC* [2018] EWHC 1560 (QB) ('doorstop' filming by a television crew of a police officer who had a spent criminal conviction). Criminal convictions are not necessarily private information but spent convictions may be, as in *NT1, NT2 v Google LLC v The Information Commissioner* [2018] EWHC 799 (QB).

- ⁹⁸ See F Brimblecombe, 'Protecting private information in the digital era: making the most effective use of the availability of the actions under the GDPR/DPA and the tort of misuse of private information' (2022) 73(1) NILQ 26–73.
- ⁹⁹ *Green Corns Ltd v Claverly Group Ltd* [2005] EMLR 31, esp paras 62–64; *R (on the application of W) v Secretary of State for Health* [2015] EWCA Civ 1034.
- ¹⁰⁰ [2002] EWCA Civ 1373 at paras 72–138.
- ¹⁰¹ 2017 SLT (Sh Ct) 93.
- ¹⁰² However, the pleadings focused narrowly on the failure of the defender to register as a data controller as opposed to a claim concerning privacy; see E Reid, 'Beyts v Trump International Gold Club Scotland Ltd: caught short on data protection and privacy' (2018) 21(3) Ed LR 411–17, 414.
- ¹⁰³ Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC. The GDPR, amongst other things, requires consent to be obtained for the processing of personal data.
- ¹⁰⁴ [2018] EWCA Civ 2339.
- ¹⁰⁵ *ibid*, paras 74–75, 79. That there was also a breach of Data Protection Act 1998, s 4 did not prevent the claimants making breach of confidence or misuse of information claims: para 60.
- ¹⁰⁶ *WM Morrison Supermarkets plc v Various Claimants* [2020] UKSC 12.
- ¹⁰⁷ *Warren v DSG Retail Ltd* [2021] EWHC 2168 (QB).
- ¹⁰⁸ *Hearst Holdings v AVELA Inc* [2014] EWHC 439 (Ch), see esp at para 180; and also paras 107 and 108.
- ¹⁰⁹ UK Trade Mark No 1308828, the estate of Marilyn Monroe (it has not been renewed).
- ¹¹⁰ In *Elvis Presley Enterprises Inc v Sid Shaw Elvisly Yours* [1999] RPC 567 the Court of Appeal found Elvis Presley's signature to be distinctive, but it was not registered because opposition based on a confusing similarity to an earlier mark used by a third-party merchandiser succeeded.
- ¹¹¹ *ibid*; see also *Corsair Toiletries's Application* [1999] ETMR 1038 ('Jane Austen' for toiletries refused because it lacked distinctiveness). On the trade mark protection of personal names, see also para 14.46.
- ¹¹² *Diana, Princess of Wales Trade Mark* [2001] ETMR 25. See also C Waelde, 'Commercialising the personality of the late Diana, Princess of Wales: censorship by the back door?' in N Dawson and A Firth (eds), *Perspectives on Intellectual Property: Trade Marks Retrospective* vol 7 (2000).
- ¹¹³ *In the matter of Application No 2323092B to register a trade mark in Class 16 by Sir Alexander Chapman Ferguson*, Trade Mark Decision O/26605. See also from Germany a decision in relation to a picture of Marlene Dietrich, discussed in F Traub, 'German courts reject trade mark application for portrait of Marlene Dietrich' [2009] Ent LR 111.
- ¹¹⁴ Numerous UK trade marks have been registered for these names and may be viewed by searching the UK trade mark register: www.gov.uk/search-for-trademark <<http://www.gov.uk/search-for-trademark>>.
- ¹¹⁵ You can find the Manual on the UK IPO website at www.gov.uk/guidance/trade-marks-manual <<http://www.gov.uk/guidance/trade-marks-manual>>.
- ¹¹⁶ [2006] ECR I-643 at para 20.

- ¹¹⁷ Case C-361/04 *Ruiz-Picasso v OHIM* [2006] ECR I-643 at para 27. See also para 15.71.
- ¹¹⁸ See also Case C-16/06 P *Les Editions Albert René Sarl v OHIM* [2009] ETMR 21 and Case C-51/09 P *Barbara Becker v Harman International Industries* [2010] ETMR 53, regarding a compound name and well-known surname.
- ¹¹⁹ Case C-259/04 [2006] ECR I-3089.
- ¹²⁰ On trade marks likely to deceive, see paras 14.102ff and on the *Emanuel* case specifically, see para 14.103.
- ¹²¹ *Elizabeth Florence Emanuel v Continental Shelf* Case C-259/04 at para 53. In contrast, according to the UK tax authorities, an unregistered trade mark is not capable of assignment separate from the goodwill of the business in which it is used (see Capital Gains Manual, HMRC CG68210).
- ¹²² *Edwin Co Ltd v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM), Elio Fiorucci* [2011] ETMR 45, see paras 19, 20, 39, 65, 67.
- ¹²³ *Rowland v Mitchell* (1897) 14 RPC 37.
- ¹²⁴ ‘Diana fund loses trademark battle’ (1999) <http://news.bbc.co.uk/1/hi/uk/272380.stm> <<http://www.news.bbc.co.uk/1/hi/uk/272380.stm>>. It is understood that had the Fund decided to appeal the decision, then the reason for the initial refusal would have been publicly available. See also A Story, ‘Owning Diana: from People’s Princess to private property’, at <https://kar.kent.ac.uk/1894> <<https://www.kar.kent.ac.uk/1894>>.
- ¹²⁵ See *Executrices of the Estate of Diana, Princess of Wales’ Application* [2001] ETMR 25 (the name lacked distinctive character).
- ¹²⁶ *Marengo v Daily Sketch* (1948) 65 RPC 242 (HL). Note also the right to prevent false attribution in the Copyright, Designs and Patents Act 1988, s 84 (see paras 6.17ff).
- ¹²⁷ *Samuelson v Producers Distributing Co* [1932] 1 Ch 201.
- ¹²⁸ *Hines v Winnick* [1947] 1 Ch 708 (Doctor Crock and his Crackpots); *Treadwell’s Drifters Inc v RCL Ltd* 1996 SLT 1048 (The Drifters).
- ¹²⁹ *Clark v Associated Newspapers Ltd* [1998] 1 All ER 959.
- ¹³⁰ *Shaw Bros v Golden Harvest* [1972] RPC 559.
- ¹³¹ *Hogan v Koala Dundee* (1988) 12 IPR 508; *Hogan v Pacific Dunlop* (1989) 12 IPR 225.
- ¹³² *Mirage Studios v Counter-Feat Clothing Co Ltd* [1991] FSR 145, see para 18.6.
- ¹³³ *Elvis Presley Trade Marks* [1997] RPC 543 at 558 (Laddie J). This would also cover the Scottish case of *Wilkie v McCulloch* (1823) 2 S 413.
- ¹³⁴ See also *Arsenal Football Club plc v Reed* [2001] RPC 922 (Laddie J), where the defendant who made clear that his goods were *not* official Arsenal merchandise was found not to have engaged in passing off.
- ¹³⁵ *Halliwell v Panini*, unreported, 9 July 1997 (Ch D).
- ¹³⁶ *Hearst Holdings v AVELA Inc* [2014] EWHC 439 (Ch) at paras 66–101, including consideration of previous case law.
- ¹³⁷ *Irvine v Talksport* [2002] 2 All ER 414; [2002] FSR 60 at para 9. See para 18.6. See also *Fenty v Arcadia* [2015] EWCA Civ 3 at para 36:

[C]haracter merchandising encompasses a range of activities which share the common feature that they involve the licensing of the names or likenesses of famous characters, whether real or fictional ... Endorsement, on the other hand, describes one particular kind of relationship between the characters (or their creators) and the goods which bear their names or likenesses, and it implies authorisation and approval.

¹³⁸ *McCulloch v May* (1948) 65 RPC 58; *Elvis Presley Trade Marks* [1999] RPC 567 at 597 per Simon Brown LJ.

¹³⁹ *Tolley v Fry* [1931] AC 333.

¹⁴⁰ (1823) 2 S 413.

¹⁴¹ [2002] EWHC 367 (Ch); [2003] EWCA Civ 423. See further M Learmouth, 'Eddie, are you OK? Product endorsement and passing off' [2002] IPQ 306.

¹⁴² *Irvine v Talksport* [2002] 2 All ER 414; [2002] FSR 60 at para 39.

¹⁴³ *Fenty v Arcadia* [2015] EWCA Civ 3.

¹⁴⁴ *ibid*, para 19.

¹⁴⁵ 'Tennis Champ Andy Murray Loses Watch in Moment of Victory' (2012), www.forbes.com/sites/paigereddinger/2012/09/11/tennis-champ-andy-murray-loses-watch-in-moment-of-victory <<http://www.forbes.com/sites/paigereddinger/2012/09/11/tennis-champ-andy-murray-loses-watch-in-moment-of-victory>>.

¹⁴⁶ See para 18.31ff.

¹⁴⁷ *LNS v Persons Unknown* [2010] EMLR 16.

¹⁴⁸ *ibid*, paras 39, 49–52, 97 et seq, 127, 131.

¹⁴⁹ [2010] EWHC 1807 (QB).

¹⁵⁰ For an example of other disputes which can arise in relation to a sponsorship agreement, including the removal of a sponsor's name as part of a rebranding process and the extent to which this was a repudiatory breach, see *Force India Formula One Team Ltd v Etihad Airways PJSC* [2011] ETMR 10.

¹⁵¹ *Proactive Sports Management v Rooney and Others* [2011] EWCA Civ 1444 and see para 93.

¹⁵² See para 17.24.

¹⁵³ *OBG Ltd v Allan, Douglas v Hello!* [2007] UKHL 21.

¹⁵⁴ *ibid*, per Lord Hoffmann at paras 122 and 123, although compare Lord Nicholls at paras 257–59.

¹⁵⁵ *ibid*, para 117 (Lord Hoffmann).

¹⁵⁶ *ibid*, para 124; see also paras 118, 120.

¹⁵⁷ Although Lord Nicholls notes that the claim of Douglas and Zeta-Jones is based on images, *ibid*, paras 252–53.

¹⁵⁸ *ibid*, para 299 (Lord Walker).

¹⁵⁹ *ibid*, para 300 (Lord Walker).

¹⁶⁰ See Aplin et al, *Gurry on Breach of Confidence: The Protection of Confidential Information* (2nd edn, 2012), 348–56, and G Black, *Publicity Rights and Image: Exploitation and Legal Control* (2011).

¹⁶¹ New York Civil Rights Law, Art 5.

¹⁶² California Civil Code, s 3344.

¹⁶³ *Grundgesetz* (German Basic Law), Arts 1(1), 2(1), and 5(1), (2); see development prior to the 2012 *Hannover* decision, discussed at *Von Hannover v Germany* (App Nos 40660/08 and 60641/08) [2012] EMLR 16 (ECtHR, Grand Chamber) at paras 41–45, 115–17, 123.

¹⁶⁴ See decision of the Federal Constitutional Court BVerG, 1 BvR 2499/09, 1 BvR 2503/09 (Jan 2012).

¹⁶⁵ Law in Copyright in Arts, ss 22 and 23.

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